

24STCV05548 24STCV05548

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Case Number: 24STCV05548 Hearing Date: July 7, 2026 Dept: 311

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 311

Tentative Ruling

24STCV05548

ARBY MASSIHI ENJILIAN vs ROMEL ALEXANDER RODRIGUEZ SALINAS, et al.

July 7, 2026

8:30 AM

NATURE OF PROCEEDINGS: PLAINTIFF'S SECOND AMENDED MOTION FOR NEW TRIAL, IN THE ALTERNATIVE, ADDITUR.

RULING:

The Court grants the Motion for New Trial unless Defendants consent to an increase by an additur in the sum of \$30,000.00 for general damages, in which case the Motion is denied.

I. BACKGROUND

This case arises out of an automobile collision. On March 27, 2026, the jury awarded Plaintiff past medical expenses in the amount of \$233,218.76, \$25,000.00 in future medical expenses, but nothing for past or future non-economic damages including pain or suffering.

On May 7, 2026, Plaintiff filed the Motion for New Trial, essentially upon grounds that the jury verdict of zero dollars for past non-economic damages is inadequate as a matter of law and unsupported by the trial evidence.

Defendants partially oppose, by advocating granting on the condition of an additur of \$30,000.00 or less.

II. LEGAL STANDARD

"The amount of damages is a fact question, committed first to the discretion of the jury and next to the discretion of the trial judge on a motion for new trial.... All presumptions favor the trial court's ruling, which is entitled to great deference because the trial judge, having been present at trial, necessarily is more familiar with the evidence and is bound by the more demanding test of weighing conflicting evidence rather than our standard of review under the substantial evidence rule." (Westphal v. Wal-Mart Stores, Inc. (1998) 68 Cal.App.4th 1071, 1078.) "A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision." (Code Civ. Proc., § 657.)

"A trial court serves as a "gatekeeper" on a motion for new trial. It opens the gate only rarely, a testament to the fact that the vast majority of trials ... are fairly conducted. In these cases, motions for new trial are routinely made, routinely denied, and are routinely affirmed on appeal." (Baker v. Amer. Horticulture Supply, Inc. (2010) 186 Cal.App.4th 1059, 1068.) "[T]he power to grant a new trial may be exercised only by following the statutory procedure...." Smith v. Superior Court (1976) 64 Cal.App.3d 434, 436. (Accord, Cembrook v. Sterling Drug, Inc. (1964) 231 Cal.App.2d 52, 66-67 [party failed to file affidavits required to show grounds for new trial where based upon facts outside the record].) New trials shall not be granted unless moving parties show a reasonable probability that a more favorable result could have been obtained, were it not for an error. (Winfred D. v. Michelin No. Amer., Inc. (2008) 165 Cal.App.4th 1011, 1038.) "[O]rders granting a new trial are examined for abuse of discretion." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 859. Accord, Lane v. Hughes Aircraft Co. (2000) 22 Cal.4th 405, 412.) In ruling on a new trial, a trial court sits as an independent trier of fact. (Ibid.) "[W]hen reviewing an order denying a new trial, the appellate court is required to review the entire record to determine independently whether the error on which the new trial motion is based is prejudicial." (Plancarte v. Guardsmark, LLC (2004) 118 Cal.App.4th 640, 645.) A trial court's determination on a motion for new trial, as to declarations containing conflicting facts, constitutes a determination of those facts in favor of the party prevailing on the motion. (Young v. Brunicardi (1986) 187 Cal.App.3d 1344, 1350-1351.)

Code of Civil Procedure section 657 permits a full or partial new trial on various grounds quoted below:

1. Irregularity in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial.
2. Misconduct of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors.
3. Accident or surprise, which ordinary prudence could not have guarded against.
4. Newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial.
5. Excessive or inadequate damages.

6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.

7. Error in law, occurring at the trial and excepted to by the party making the application.

(Oakland Raiders v. National Football League (2007) 41 Cal.4th 624, 633 [listing the statutory grounds for new trial].)

"Appellate courts are generally reluctant to tamper with jury or trial court awards for pain and suffering. (4 California Torts § 51.60.) "The decision whether to grant a new trial on the damages issue alone appropriately rests in the discretion of the trial judge." (47 Ca Jur New Trial § 137 (3).)

III. ANALYSIS

In the Reply, Plaintiff criticizes Defendants' advocated additur of \$30,000.00 as being minuscule, and based upon "cherry picked" portions of trial transcripts, to contend that pain and suffering was slight, while overlooking multiple witnesses' testimony at trial.

Defendants reason that, via a conditional order granting a new trial unless Defendants accept an additur, the court should order no more than \$30,000 in past and future general damages, citing *Dodson v. J. Pacific, Inc.* (2007) 154 Cal.App.4th 931, 938. Defendants also specify trial evidence supporting the verdict. (See Opposition, pp. 5-6.)

"Upon a motion for new trial grounded on insufficiency of the evidence because the damages are inadequate, the court should first determine whether the damages are clearly inadequate and, if so, whether the case would be a proper one for granting a motion for new trial limited to damages. [Citation.] If both conditions exist, the court in its discretion may issue an order granting the motion for new trial unless the defendant consents to an additur as determined by the court. (*Jehl v. Southern Pacific Co.* (1967) 66 Cal.2d 821, 832. See also generally 11 Witkin Cal. Proc Attack § 123.)

"Pain and suffering are not subject to precise measurement by any scale, and their translation into money damages is peculiarly the function of the trier of the facts." (*Maldonado v. Superior Court* (1996) 45 Cal.App.4th 397, 401.) "The law does not prescribe a definite standard or method to calculate compensation for pain and suffering; the jury merely is required to award an amount it finds reasonable in light of the evidence." (*Westphal v. Wal-Mart Stores, Inc.* (1998) 68 Cal.App.4th 1071, 1078.) No fixed or absolute standard exists for computing the dollar value of emotional distress damages, and juries have vast discretion in determining damages amounts. (*Hope v. California Youth Auth.* (2005) 134 Cal.App.4th 577, 595.)

While "courts have found jury awards which fail to compensate for pain and suffering inadequate as a matter of law", "an award that does not account for pain and suffering is 'not necessarily inadequate as a matter of law' ..., and ... '[e]very case depends upon the facts involved.' " (*Dodson v. J. Pacific, Inc.* (2007) 154 Cal.App.4th 931, 936, 938.)

Here, after weighing the conflicting evidence, the Court is not convinced, from the entire record and reasonable inferences, that the jury clearly should have reached a different verdict. That is especially true because the factual determinations related to pain and suffering are uniquely flexible and discretionary, and not confined. Furthermore, the evidence supports the jury's verdict including damages, including based on the proof referenced at Opposition, pages 5 through 6.

However, the Court holds Defendants to their opposing position that the Court should enter a conditional order granting a new trial unless Defendants accept an additur not over \$30,000.00 for general damages. Courts may accept representations of attorneys as being the equivalent of a binding stipulation. (*Roman v. Liberty University, Inc.* (2008) 162 Cal.App.4th 670, 683.) "By expressly consenting to an erroneous procedure an appellant acquiesces in it and thereby loses the right to attack the error on appeal." (*Stebbins v. White* (1987) 190 Cal.App.3d 769, 782.) "It is a fundamental rule of appellate procedure that an order will not be disturbed on an appeal prosecuted by a consenting party. A stipulation is a consent within the meaning of this rule." (*Bowden v. Green* (1982) 128 Cal.App.3d 65, 72.)

IV. CONCLUSION

Accordingly, the Court grants a new trial unless Defendants accept an additur in the sum of \$30,000.00 for general damages.

Plaintiff to give notice.